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1 This act shall be known and may be cited as the "Fair Banking
2 Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1530 of Title 6, unless there is
5 created a duplication in numbering, reads as follows:

6 A. As used in this section:

7 1. "Adverse action" means a decision by a financial institution
8 to directly or indirectly decline to provide full and equal
9 enjoyment in the provision of covered financial services and
10 includes refusing to provide, terminating, or restricting covered
11 financial services;

12 2. "Discriminate in the provision of covered financial
13 services" means taking an adverse action against a customer on the
14 basis of one of the following criteria:

15 a. any person's exercise of religion that is protected
16 by the First Amendment to the United States
17 Constitution, Section 2 of Article I of the Oklahoma
18 Constitution, or federal or state law, including all
19 aspects of religious observance and practice, as well
20 as belief and affiliation,

21 b. any person's speech, expression, opinions, expressive
22 activity, or association that is protected by the
23 First Amendment to the United States Constitution,
24 Section 22 of Article II of the Oklahoma

1 Constitution, or federal or state law, including the
2 lawful preservation of privacy regarding those
3 activities, such as declining to disclose
4 contributions or political activity beyond what is
5 required by applicable state and federal law.

6 Provided that this subparagraph does not include
7 speech that the United States Supreme Court has
8 expressly held is unprotected, such as obscenity,
9 fraud, incitement, true threats, fighting words, or
10 defamation,

11 c. any person's participation in lawful economic
12 activity,

13 d. animus towards a person based on the factors in
14 subparagraphs a through c of this paragraph, and

15 e. a desire to, directly or indirectly, obtain a gain
16 from or avoid a loss imposed on the covered financial
17 institution by any person for the purpose of
18 encouraging the covered financial institution to take
19 an adverse action based on any of the factors in
20 subparagraphs a through c of this paragraph;

21 3. "Financial institution" means:

22 a. a bank that has total assets over One Hundred Billion
23 Dollars (\$100,000,000,000.00), or
24

1 b. a payment processor, credit card company, credit card
2 network, payment network, payment service provider,
3 or payment gateway that has processed more than One
4 Hundred Billion Dollars (\$100,000,000,000.00) in
5 transactions in the last calendar year.

6 A financial institution includes any parent company, holding
7 company, affiliate, or subsidiary company, even if that company is
8 also a financial institution;

9 4. "Covered financial service" means:

- 10 a. depository accounts including, but not limited to,
11 checking accounts, savings accounts, or NOW accounts,
12 b. money transmission including, but not limited to,
13 checking, payment services, ACH, or credit card
14 networks, or
15 c. credit including, but not limited to, personal loans,
16 mortgages, business loans, or credit cards.

17 Covered financial service does not include the provision of
18 insurance or the underwriting of or an investment in a security as
19 defined by federal law; and

20 5. "Person" means any individual, partnership, association,
21 joint stock company, trust, corporation, nonprofit organization, or
22 other business or legal entity.

23 B. 1. If a financial institution takes an adverse action
24 against a person, that person may request a statement of specific

1 reasons within ninety (90) days after receiving notice of the
2 refusal to provide, restriction of, or termination of service. The
3 person may request the statement from a customer service
4 representative or designated account representative by phone, U.S.
5 mail, or electronic mail. Unless otherwise prohibited by federal
6 law, the financial institution shall transmit the statement of
7 specific reasons via U.S. Mail and electronic mail, if known to the
8 financial institution, within thirty (30) days of receiving the
9 person's request.

10 2. The statement shall be specific and include a description of
11 the principal reason or reasons for the adverse action. A statement
12 that the adverse action was based on the institution's internal
13 standards or policies or that the person failed to achieve a
14 qualifying score on the institution's credit scoring system are
15 insufficient. If any criteria listed in paragraph 2 of subsection A
16 of this section factored into the institution's decision to take an
17 adverse action, the criteria shall be described in the statement.

18 3. If the financial institution provides an adverse action
19 statement to the customer consistent with its obligations under the
20 Equal Credit Opportunity Act, 15 U.S.C., Section 1691 et. seq., and
21 implementing regulations, that statement shall be considered to
22 satisfy the requirements of this subsection, provided that if any
23 criteria listed in paragraph 2 of subsection A of this section
24 factored into the institution's decision to take an adverse action,

1 the criteria shall be described in the statement, a supplement to
2 the statement, or a separate statement that is provided to the
3 customer contemporaneously with the Equal Credit Opportunity Act
4 adverse action statement.

5 C. A financial institution shall not:

6 1. Discriminate in the provision of financial services to a
7 person;

8 2. Agree, conspire, or coordinate, directly or indirectly,
9 including through any intermediary or third party, with another
10 person, or group of persons, to engage in activity to discriminate
11 in the provision of financial services to a person; or

12 3. Fail to provide, or provide false or intentionally
13 misleading, information in the report required in subsection B of
14 this section.

15 D. It shall not be a violation of this act for a financial
16 institution to take any of the following actions, provided that the
17 action was made in good faith and not motivated by animus or a
18 desire to discriminate in the provision of covered financial
19 services against a person:

20 1. A change in the terms of an account expressly agreed to by a
21 customer;

22 2. Any action or forbearance relating to an account taken in
23 connection with inactivity, default, or delinquency as to that
24 account;

1 3. A refusal to provide services because applicable federal or
2 Oklahoma law prohibits the covered financial institution from
3 providing the service requested;

4 4. A refusal to provide a service because the covered financial
5 institution does not offer the type of service requested; or

6 5. A decision based solely on any of the following valid
7 business factors, if made in an impartial manner and in good faith:

8 a. maximizing profitability or shareholder value, provided
9 this determination is not based on a desire to obtain a
10 benefit or avoid a harm imposed by another person
11 because the covered financial institution served a
12 customer,

13 b. complying with legitimate legal or regulatory
14 requirements, or

15 c. maintaining the safety and soundness of a covered
16 financial institution or its employees.

17 E. Any violation of this section shall be an unfair or
18 deceptive act or practice declared unlawful by Section 753 of Title
19 15 of the Oklahoma Statutes and, in addition to the rights and
20 remedies provided in this section, the Oklahoma Attorney General or
21 other competent official may pursue any other remedies provided for
22 under the Oklahoma Consumer Protection Act.

23 F. Any person harmed by a violation of this section may
24 initiate a civil action for any of the following:

1 1. Actual damages, or Ten Thousand Dollars (\$10,000.00),
2 whichever is greater, for each violation. If the trier of fact
3 finds that the violation was willful, the tier of fact may increase
4 the damages to an amount of up to three (3) times the actual damages
5 sustained, or Thirty Thousand Dollars (\$30,000.00), whichever is
6 greater. A court shall award a prevailing plaintiff reasonable
7 attorney fees and court costs;

8 2. Preventive relief, including an application for a permanent
9 or temporary injunction, restraining order, or other order as is
10 necessary to enforce the requirements of this section; or

11 3. Reasonable attorney fees and court costs.

12 G. If a financial institution can show by clear and convincing
13 evidence that the plaintiff filed a civil action pursuant to
14 subsection F of this section in bad faith, the financial institution
15 shall be entitled to reasonable attorney fees and court costs from
16 the plaintiff.

17 H. This act shall be construed in favor of the broad protection
18 of the conduct, opinions, and beliefs protected by the First
19 Amendment to the United States Constitution, applicable federal
20 laws, the Oklahoma Constitution, and state law.

21 SECTION 3. This act shall become effective November 1, 2026.

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23 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
24 03/03/2026 - DO PASS, As Coauthored.